IPR

1.what is the meaning of Intellectual Property Rights? Discuss the different kinds of Intellectual Property Rights.[10M]-Compulsory

- When a business or an individual has an idea that they want to protect from being used by others without their permission, it is best to seek legal protection of that intellectual property.
- By seeking property rights over your intellectual property — property that is a creation of the mind, such as an invention, symbol, or even a name.
- You establish rightful ownership and prevent the unlawful use of your property.
- Intellectual Property Rights (IPRs) are legal rights that protect creations and/or inventions resulting from intellectual activity in the industrial, scientific, literary or artistic fields. The most common IPRs include patents, copyrights, marks and trade secrets.

There are four types of intellectual property rights and protections namely:

1. TRADE SECRETS
   - Trade secrets refer to specific, private information that is important to a business because it gives the business a competitive advantage in its marketplace. If a trade secret is acquired by another company, it could harm the original holder.
   - Examples of trade secrets include recipes for certain foods and beverages (like Mrs. Fields' cookies or Sprite), new inventions, software, processes, and even different marketing strategies.
   - When a person or business holds a trade secret protection, others cannot copy or steal the idea. In order to establish information as a "trade secret," and to incur the legal protections associated with trade secrets, businesses must actively behave in a manner that demonstrates their desire to protect the information.
   - Trade secrets are protected without official registration; however, an owner of a trade secret whose rights are breached–i.e. someone steals their trade secret–may ask a court to ask against that individual and prevent them from using the trade secret.

2. PATENTS
   - A Patent is a type of limited-duration protection that can be used to protect inventions (or discoveries) that are new, non-obvious, and useful, such a new process, machine, article of manufacture, or composition of matter.
   - When a property owner holds a patent, others are prevented, under law, from offering for sale, making, or using the product.

3. COPYRIGHTS
   - Copyrights and patents are not the same things, although they are often confused. A copyright is a type of intellectual property protection that protects original works of authorship, which might include literary works, music, art, and more. Today, copyrights also protect computer software and architecture.
   - Copyright protections are automatic; once you create something, it is yours. However, if your rights under copyright protections are infringed and you wish to file a lawsuit, then registration of your copyright will be necessary.

4. TRADEMARKS

- Finally, the fourth type of intellectual property protection is a trademark protection. Remember, patents are used to protect inventions and discoveries and copyrights are used to protect expressions of ideas and creations, like art and writing.
- Trademarks, then, refer to phrases, words, or symbols that distinguish the source of a product or services of one party from another. For example, the Nike symbol–which nearly all could easily recognize and identify–is a type of trademark.
- While patents and copyrights can expire, trademark rights come from the use of the trademark, and therefore can be held indefinitely. Like a copyright, registration of a trademark is not required, but registering can offer additional advantages.

out of these any 2 u have to answer.
2.Discuss the Origin of Patents.[5M]

- In 1416, the Great Council of Venice awarded the first patent for a technological invention to Ser Franciscus Petri of Rhodes. Later, in 1421, architect Filippo Brunelleschi was granted an individual act to in protection of his intellectual property rights.
- Patents were systematically granted in Venice as of 1450, where they issued a decree by which new and inventive devices had to be communicated to the Republic in order to obtain legal protection against potential infringers. The period of protection was 10 years. These were mostly in the field of glass making.
- Patents began as instruments used by noble or republican governments in later medieval and early Renaissance Europe primarily to induce the transfer and disclosure of foreign technologies. Even the most cursory attention to this bit of history should give pause to one casual supposition which the basic economic analysis of the patent system has fostered viz., that the protection of intellectual property has been instituted where governments recognized there was more to be gained by stimulating indigenous inventive activity, than by applying knowledge of techniques and products that could be "borrowed" freely from the rest of the world.
- The word patent originates from the Latin patere, which means "to lay open" (i.e., to make available for public inspection). It is a shortened version of the term letters patent, which was an open document or instrument issued by a monarch or government granting exclusive rights to a person, predating the modern patent system. Similar grants included land patents, which were land grants by early state governments in the US, and printing patents, a precursor of modern copyright.

3.Discuss the Origin of Copy Right.[5M]

- The history of copyright starts with early privileges and monopolies granted to printers of books. The British Statute of Anne 1710, full title "An Act for the Encouragement of Learning, by vesting the Copies of Printed Books in the Authors or purchasers of such Copies, during the Times therein mentioned", was the first copyright statute. Initially copyright law only applied to the copying of books. Over time other uses such as translations and derivative works were made subject to copyright and copyright now covers a wide range of works, including maps, performances, paintings, photographs, sound recordings, motion pictures and computer programs.
- Today national copyright laws have been standardised to some extent through international and regional agreements such as the Berne Convention and the European copyright directives. Although there are consistencies among nations' copyright laws, each jurisdiction has separate and distinct laws and regulations about copyright. Some jurisdictions also recognize moral rights of creators, such as the right to be credited for the work.
- Copyrights are exclusive rights granted to the author or creator of an original work, including the right to copy, distribute and adapt the work. Copyright does not protect ideas,

only their expression or fixation. In most jurisdictions copyright arises upon fixation and does not need to be registered. Copyright owners have the exclusive statutory right to exercise control over copying and other exploitation of the works for a specific period of time, after which the work is said to enter the public domain. Uses which are covered under limitations and exceptions to copyright, such as fair use, do not require permission from the copyright owner. All other uses require permission and copyright owners can license or permanently transfer or assign their exclusive rights to others.

4.Discuss about Inventions which are not Patentable Under Indian patents acts.[5M]

(Section 3 of the (Indian) Patents Act, 1970
The following are not patentable in India:-

1. An invention, that is frivolous or that claims anything obviously contrary to well established natural laws;
2. An invention, the primary or intended use of which would be contrary to law or morality or injurious to public health;
3. The mere discovery of a scientific principle or the formulation of an abstract theory;
4. The mere discovery of any new property or new use for a known substance or of the mere use of a known process, machine or apparatus unless such known process results in a new product or employs at least one new reactant;
5. A substance obtained by a mere admixture resulting only in the aggregation of the properties of the components thereof or a process for producing such substance;
6. The mere arrangement or rearrangement or duplication of known devices, each functioning independently of one another in a known way;
7. A method of agriculture or horticulture;
8. Inventions relating to atomic energy.
9. Any process for the medicinal, surgical, curative, prophylactic or other treatment of human beings or animals.
10. Plants and animals in whole or any part thereof other than microorganisms.
11. Mathematical or business method or a computer program per se or algorithms.
12. literary, dramatic, musical or artistic works, cinematographic works, television productions and any other aesthetic creations.
13. Mere scheme or rule or method of performing mental act or playing game.
14. Presentation of information.
15. Topography of integrated circuits.
16. An invention which in effect, is traditional knowledge or is based on the properties of traditional knowledge.